

		Plaintiff to give notice.
4	Giunta v. Village West Dallas Development	O/C
5	Jahangiri v. Vahidramezani	O/C
6	Hernandez v. Smart & Final Stores LLC	The motion by Smart & Final Stores, LLC to reclassify the action filed by plaintiff Maria Hernandez from unlimited civil to limited civil is GRANTED. The governing standard for reclassifying unlimited to limited jurisdiction is found in <i>Walker v. Superior Court</i> (1991) 53 Cal.3d 257. There, the Supreme Court stated the trial court must conclude that resolution of the action will <i>necessarily</i> fall short of the jurisdictional minimum before transferring a case from limited to unlimited jurisdiction, i.e., that a greater recovery “could not be obtained” or is “virtually unobtainable.” <i>Id.</i> at p. 269-270. Appellate courts have underscored the high threshold set by <i>Walker</i>: “[The plaintiff] may well not prevail on the factual disputes regarding the extent of his injuries But a [<i>Walker</i>] hearing is not to be perceived as a minitrial or an opportunity for a trial judge to put forth a well-educated guess of a verdict. The <i>unlikelihood</i> of a judgment in excess of \$25,000 is <i>not the test</i>. The trial court reviews the record to determine whether the result is obtainable. Simply stated, the trial court looks to the possibility of a jurisdictionally appropriate verdict, not to its probability.” <i>Maldonado v. Superior Court</i> (1996) 45 Cal.App.4th 397, 402, original italics; see also <i>Ytuarte v. Superior Court</i> (2005) 129 Cal.App.4th 266, 270; <i>Singer v. Superior Court</i> (1999) 70 Cal.App.4th 1315, 1317; <i>Andre v. Superior Court</i> (1991) 2 Cal.App.4th 11, 19. Here, on 4/13/20 plaintiff tripped on a pallet cart at Smart & Final and sustained a 1.5cm abrasion to her shin that healed. There is no indication of any residual scar from the abrasion. As a result of the fall, she also sustained pain to her entire left side. Although plaintiff went to a local clinic for the abrasion, she never mentioned the pain in her side. The total medical specials are apparently only \$40 and there is no indication of any proposed future treatment. There is no claim for loss of income. While plaintiff asserts that she has ongoing complaints of pain on her left side, there is no indication that a health care provider has made causal connection to the subject incident or otherwise documented the symptoms. In fact, in the 3 ½ years since the incident, the plaintiff has never been to a doctor for treatment of, nor mentioned to any health care provider, that she had pain in her side. Plaintiff’s reference to covid restrictions does not explain the failure to seek treatment during the past year. While plaintiff points out that there can be cases where economic damages are waived and the verdict on general damages exceeds

		\$25,000. However, it has been the Court's experience that this occurs where the actual treatment is significant or there is a significant injury. Here, there are virtually no economic damages and the only objective injury has healed without consequence. In consideration of the evidence submitted, it must be said that "the verdict will 'necessarily' fall short of the superior court jurisdictional requirement of a claim exceeding \$25,000." (<i>Walker v. Superior Court</i> (1991) 53 Cal.3d 257, 269-270) Accordingly, the motion is GRANTED. The Court therefore ORDERS that this case be reassigned to limited civil. Counsel for Smart & Final, LLC. is ordered to give notice of this ruling.
7	Razo v. Andersson	Cont. to 12/11.
8	Daleh v. NPI Dept Fund II, LP et al.	Before the Court is an Order to Show Case re: Issuance of a Preliminary Injunction to prevent Defendants from foreclosing upon, selling, transferring, or executing any Trustee Deed's Upon sale for the subject real property located at 25121 Arctic Ocean Drive, Lake Forest CA 92630. The court finds a Preliminary Injunction is warranted in this instance. The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (<i>O'Connell v. Superior Court</i> (2006) 141 Cal.App. 4th 1452, 1481.) The moving party has the burden to show that it is reasonably probable it will prevail on the merits. (<i>San Francisco Newspaper Printing Co. v. Superior Court</i> (1985) 170 Cal.App.3d 438, 442; Weil & Brown, ¶ 9:632.1.) Additionally, "[i]n deciding whether to issue a preliminary injunction, a trial court weighs two interrelated factors: [1] the likelihood the moving party ultimately will prevail on the merits, and [2] the relative interim harm to the parties from the issuance or nonissuance of the injunction." (<i>Whyte v. Schlage Lock Co.</i> (2002) 101 Cal.App.4th 1443, 1449-1450.) Here, the likelihood of prevailing is based not only on Plaintiff's arguments but also on the entry of default as to Defendant NPI. As to the breach of contract claim, it is clear that the full amount of the loan was never disbursed. While Defendant presents the "Improvement Loan Agreement" attached to the Declaration of Scott Lowe as Exhibit 2, that document states that the loan would "bear interest on so much of the principal sum as shall be advanced pursuant to the terms of the Promissory Note of even date" and "The Loan shall bear interest on each Advance from the date of the Advance in accordance with the terms of the Note." As it is clear that the full amount of \$3,150,000 was never advanced, Plaintiff's assertion that it was erroneously charged interest on the full loan amount is likely to succeed. Particularly as Defendant is currently in default in this case, Plaintiff has shown a likelihood of success on the merits.